TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 472]

LOUISIANA

REVOKING EXECUTIVE ORDER NO. 5005 OF DECEMBER 5, 1928, WITHDRAWING PUBLIC LANDS IN AID OF LEGISLATION AND OF MISSISSIPPI FLOOD CONTROL PROJECTS

By virtue of the authority contained in the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C., 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5005 of December 5, 1928, withdrawing the hereinafter-described public lands in aid of legislation and of Mississippi flood control projects, is hereby revoked.

The jurisdiction over and use of such land for flood control purposes shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such land shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on June 29, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from June 29, 1948, to September 28, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 10, 1948, to June 29, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on June 29, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on September 29, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from September 10, 1948, to September 29, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on September 29, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in Bureau of Land Management, Washington 25, D. C. shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the small tract act of June 1, 1938, shall be governed by the regulations contained in Part 257, of that title.

Inquiries concerning these lands shall be addressed to Bureau of Land Management, Washington 25, D. C.

The lands affected by this order are described as follows:

LOUISIANA MERIDIAN

T. 11 N., R. 6 E.,
Sec. 3, that part of the SW¼SW¼ lying south and west of the Boeuf River;
Sec. 10, lot 3.
T. 10 N., R. 7 E.,
Sec. 17, NE¼NW¼.

The area described contains 89.75 acres.

The land is low, and some portions are swampy.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

APRIL 27, 1948.

[F. R. Doc. 48–3978; Filed, May 5, 1948; 8:45 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 811–B]

PART 95—CAR SERVICE

RESTRICTIONS ON USE OF COAL-BURNING FREIGHT LOCOMOTIVES

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 29th day of April A. D. 1948.

Upon further consideration of Service Order No. 811 (13 F. R. 1648) as amended (13 F. R. 1830, 1999) and Service Order No. 811–A (13 F. R. 2073), and good cause appearing therefor: *It is ordered*, That:

(a) Service Order No. 95.811 *Restrictions on use of coal-burning freight locomotives*, as amended, is hereby vacated and set aside.

It is further ordered, That this order shall become effective at 11:59 p. m., April 30, 1948; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the Office of the Secretary of the Commission, at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, secs. 402, 418, 41 Stat. 476, secs. 4, 10, 54 Stat. 901, 911; 49 U. S. C. 1 (10)–(17), 15 (2))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 48–3986; Filed, May 5, 1948; 8:48 a. m.]

[S. O. 814]

PART 96—JOINT USE OF TERMINALS

BINGHAM AND GARFIELD RAILWAY CO.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 29th day of April A. D. 1948.

It appearing, that the Kennicott Copper Corporation, hereinafter termed Kennicott, which controls the Bingham and Garfield Railway Company, hereinafter termed Bingham, constructed this line to operate as a common carrier by railroad and serve its mining operations which at the time of construction were at the summit of the mountain range; that over the years the mining has changed location and at present is at the bottom of the range; to facilitate transportation Kennicott has constructed and will place in operation on May 1, 1948, a non-common carrier railroad which railroad will transport approximately 98.8 percent of the traffic now handled by Bingham; that the remainder of the traffic which Bingham transports as a common carrier is insufficient to support this railroad so as to enable it to perform its common carrier duties for the public; that in view of this, Bingham has filed an application with this Commission for a certificate that the present and future public convenience and necessity require the abandonment of its line of railroad and the termination of the operation thereof in the State of Utah; that The Denver and Rio Grande Western Railroad Company, hereinafter termed Rio Grande, has made application with this Commission for a certificate that the present and future public convenience and necessity require the acquisition of certain rail trackage of Bingham in Salt Lake County, State of